

HOUSE No. 5314

The Commonwealth of Massachusetts

PRESENTED BY:

Amy Mah Sangiolo, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for condominium conversion of co-owned two-unit buildings.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Peter F. Harrington</i>	<i>157 Lowell Avenue Newtonville, MA. 02460</i>	<i>2/10/2026</i>

HOUSE No. 5314

By Representative Sangiolo of Newton (by request), a petition (subject to Joint Rule 12) of Peter F. Harrington relative to condominium conversion of co-owned two-unit buildings. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for condominium conversion of co-owned two-unit buildings.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 183A of the General Laws is hereby amended by inserting after
2 section 15 the following section:-

3 Section 15A. (a) Where real property consisting of land and a building containing 2
4 dwelling units is held by tenants in common who hold undivided interests in the property, and
5 there is no agreement in a record binding all the tenants in common that governs the partition or
6 conversion of the property to condominium ownership, a tenant in common may petition the land
7 court pursuant to sections 4 to 14, inclusive, of chapter 241 to partition the property by
8 converting the building into 2 condominium units under this chapter.

9 (b) Upon petition for partition under this section, the court shall order the partition of the
10 property into condominium form of ownership.

11 (c) Upon an order of the court to partition into condominium form of ownership, the unit
12 owners shall, pursuant to the procedure set forth in section 16, record a master deed.

(d) In ordering partition under this section, the court may impose reasonable conditions including but not limited to conditions relating to utility easements, access easements, drainage, maintenance of common structures or facilities and allocation of costs between the parties.

SECTION 2. Section 4 of Chapter 241 of the General Laws, as so appearing, is hereby amended by adding the following paragraph:-

In a partition proceeding under section 15A of chapter 183A involving land containing a building with 2 dwelling units to be held in condominium form of ownership, the court shall have authority to order a condominium form of ownership pursuant to said chapter 183A.